

(Under section 10.—Pakistan National Council of the Arts Rules)

No. F. 2-3/72.—CP. IV, dated the 20th August, 1973.—In pursuance of Clause 3 of the Pakistan National Council of the Arts Act, 1973, the Federal Government of Pakistan is pleased to establish the Pakistan National Council of the Arts, Islamabad, with effect from 3rd August, 1973, the date of commencement of the Act.

[See Gaz. of F. 1973, Ext. Pt. III, p. 1529]

PAKISTAN NATIONAL COUNCIL OF THE ARTS RULES, 1981

S.R.O. 677(I)/81, dated the 27th June, 1981.—In exercise of the powers conferred by section 10 of the Pakistan National Council of the Arts Act, 1973 (LIX of 1973), the Federal Government is pleased to make the following rules, namely:—

1. Short title and commencement.—(1) These rules may be called the Pakistan National Council of the Arts Rules, 1981.

(2) They shall come into force at once.

2. Definitions.—In these rules, unless there is anything repugnant in the subject or context,—

- (a) "Act" means the Pakistan National Council of the Arts Act, 1973 (LIX of 1973);
- (b) "Committee" means any committee of the Board constituted under these rules ;
- (c) "Vice-Chairman" means the Vice-Chairman of the Board ; and
- (d) "member" means a member of the Board.

3. Meeting of the Board.—(1) A meeting of the Board shall be held at least once in every financial year to consider administrative, financial and policy matters of the Council and shall be convened by the Chairman or a person authorised by him in this behalf.

(2) To constitute a quorum at a meeting of the Board not less than one-third of the total number of members shall be present.

(3) The Chairman, in his absence, the Vice-Chairman, and if the Vice-Chairman is also absent, a member nominated by the Chairman, shall preside at the meetings of the Board.

(4) At a meeting of the Board, each member shall have one vote and, in the event of equality of votes, the person presiding shall have a second or casting vote.

4. The authorities of the Council.—The authorities of the Council shall be—

- (a) the Chairman ;
- (b) the Vice-Chairman ;
- (c) the Executive Committee ;
- (d) the Director-General ;

A59

(Under section 10—Pakistan National Council of the Arts Rules)

5. Functions and powers of the Chairman.—The Chairman—

- (a) shall, when present, preside over the meetings of the Board ;
- (b) if he is satisfied that the proceedings of any authority are not in accordance with the provisions of the Act or rules or regulations made thereunder, may, after calling upon such authority to show cause why such proceedings should not be annulled, by order in writing, annul such proceedings ;
- (c) shall approve all appointments of officers in Grade 17 and above ; and
- (d) may expand or curtail Council's programmes within the budgetary limits approved by the Board.

6. Functions and powers of the Vice-Chairman.—The Vice-Chairman shall, during the absence of the Chairman, exercise and perform the powers and functions of the Chairman.

7. Executive Committee.—(1) There shall be an Executive Committee consisting of the following members, namely :—

- (a) Secretary of the Ministry dealing with Culture, who shall also be its President ;

~~(b) Managing Director, Pakistan Tourism Development Corporation ;~~

~~(c) Managing Director, Pakistan Television Corporation ;~~ *Chairman. PTV*

(d) Director-General, Pakistan Broadcasting Corporation ; *and PBC ;*

(e) Financial Adviser of the Division dealing with Culture ;

(f) Joint Secretary of the Ministry dealing with Culture ;

~~(g) Managing Director, National Film Development Corporation ;~~

~~(h) Director-General, Pakistan Sports Board ;~~

(i) Director-General, Pakistan National Council of the Arts (PNCA) ;

~~(j) Executive Director, National Institute of Folk and Traditional Heritage ;~~

and *Director Administration and Accounts ;*

(k) Secretary, Pakistan National Council of the Arts who shall also be its Secretary.

(2) The Executive Committee may co-opt. any member to assist it in the performance of its functions.

8. Functions and powers of the Executive Committee.—The Executive Committee shall—

- (a) Supervise the activities of the Council ;
- (b) be the appellate body in administrative matters ; and
- (c) re-appropriate budgetary allocations where considered necessary.

! Omitted by SRO 322(1)/89, dt 8-8-89

2 Subs. by SRO 870(1)/83 dt 21-8-89

(Under section 10.—Pakistan National Council of the Arts Rules)

9. Meetings of the Executive Committee.—(1) The Executive Committee shall meet at least once in two months.

(2) At every meeting of the Committee, the President of the Committee, and in his absence, a member of the Committee nominated by the President of the Committee, shall preside.

(3) The number of members whose presence shall be necessary to constitute a quorum of a meeting of the Executive Committee shall be four.

(4) At a meeting of the Executive Committee, each member shall have one vote and in the event of the equality of votes, the person presiding shall have a second or casting vote.

10. Selection Committees.—(1) All appointments in the Council shall be made on the recommendations of the Selection Committees which shall consist of,—

(a) in the case of officers of Grade 17 and above,—

- (i) the Secretary of the Ministry dealing with Culture, who shall be its Chairman ;
- (ii) a representative of the Federal Public Service Commission ;
- (iii) the Director-General, Pakistan Broadcasting Corporation ; and
- (iv) the Director-General, Pakistan National Council of the Arts ; and

(b) in the case of officers of Grade 16 and below,—

- (i) the Director-General, PNCA, who shall be its Chairman ;
- (ii) the Deputy Secretary of the Ministry dealing with Culture ;
- (iii) the Secretary, Pakistan National Council of the Arts ; and
- (iv) the Executive Director or Director of the concerned Division of the Council.

(2) The Committee under clause (a) may co-opt one or two experts to assist it in the performance of its functions and the recommendations of the Committee shall be subject to confirmation by the Board.

(3) Recommendations if the Committee under clause (b) shall be subject to the approval of the Vice-Chairman and shall also be subject to the confirmation by the Executive Committee.

11. Budget statement.—The Council shall, in the month of November each year, submit to the Federal Government, in such manner and in such form as it may direct, a statement of the estimated receipts and expenditure of the Council in respect of the next financial year.

(Under section 10.—Pakistan National Council of the Arts Rules)

12. **Annual report and statement of accounts.**—The Council shall, in the month of January each year, submit to the Federal Government an annual report of its activities alongwith a duly audited statement of accounts of the preceding year.

13. **Communication from the Council.**—Any notice, determination, direction, requisition, appointment, expression of opinion, approval or sanction to be given or signed on the part of the Council for any or the purposes of, or in relation to, the powers or functions with which it has been invested under these rules, shall be efficient and binding if it is in writing and signed by the Director-General of PNCA or an officer of the Council so authorised by him.

14. **Repeal.**—The Pakistan National Council of the Arts Rules, 1974, are hereby repealed.

[See Gaz. of P., 1981 Ext. Pt. II, pp. 1505—1508]

S.R.O. 1775 (I)/73, dated the 24th December, 1973.—In exercise of the powers conferred by sub-section (3) of section 1 of the National Guards Act, 1973 (LXI of 1973), the Federal Government is pleased to appoint the 24th day of December 1973 to be the date on which the said Act shall come into force.

[See Gaz., of P., 1973, Ext. Pt. II, p. 2527].

THE NATIONAL GUARDS RULES, 1973

S.R.O. 392 (I)/74. dated the 18th March, 1974.—In exercise of the powers conferred by section 9 of the National Guards Act, 1973 (LXI of 1973), the Federal Government is pleased to make the following rules, namely :—

1. **Short title.**—These rules may be called the National Guards Rules, 1973.
2. **Definition.**—Unless the context otherwise requires—
 - (a) “Act” means the National Guards Act, 1973 (LXI of 1973) ;
 - (b) “Form” means a form appended to these rules ;
 - (c) “formation commander” means an officer for the time being in command of a corps, division, logistic area or brigade in whose jurisdiction the headquarters of a unit of the Mujahid Force are situate ;
 - (d) “regulations” means regulations made under section 40 ;
 - (e) “sector commander” means an officer for the time being in command of a sector in whose jurisdiction the headquarters of a unit of the Janbaz Force are situate ;
 - (f) “Schedule” means a schedule to these rules ; and
 - (g) “Section” means a section of the Act.

3. **Regrant of commission to retired Army Officers.**—(1) The General Headquarters of the Pakistan Army shall, from time to time, recommend to the Federal Government the names of such retired officers who, having

(1) The General Headquarters of the Pakistan Army shall, from time to time, recommend to the Federal Government for employment in the Mujahid Force or the Janbaz Force the names of such retired officers of the Pakistan Army—

as have no reserve liability and are considered for grant of commission